

**The Canary in the Parking Lot:
Why the Capacity to Remain Is the First Thing a Site Sheds**

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Abstract

A drive-in can be criticised for what it consumes and mourned for what closes with it; the judgements differ because profitability, ecological cost and lived use are different measures. This paper computes what that separation implies. Each function of a site has a footprint, a social value, and an appropriability: the share of value the operator can charge for. Under rising ground rent functions are dropped in order of private yield per unit footprint, and the five constituting the capacity to remain are the first five dropped, while the thing a public evaluation would drop first is the parking the transaction requires. When appropriability is uniform the two orders are identical, which places the result in that one variable. The canary metaphor therefore acquires a number: nowhere is left to sit at a ground rent of 13.2 and the doors close at 81.9, and when the last seat goes the site still earns 0.588 of its peak profit while having lost 0.423 of its social value. Removing every way of staying reduces the site's ecological burden by 0.0212, never by more than 0.0377 across 1482 sweep cells, because the burden belongs to journeys the operator neither pays for nor controls. Finally, a duty attaching to the capacity to remain is cheap to escape by removing it: a duty worth 0.0704 of private return buys the removal of 0.3226 of social value. That argument was made and accepted in a United States district court in 1966, then reversed.

What the drive-in is evidence of

The argument that a drive-in restaurant was an extravagance and the argument that its disappearance is a loss are usually treated as rivals. They are answers to different questions, and the separation is available already: a judgement about commercial return, a judgement about ecological cost, and a judgement about what a place lets people do are three judgements, and they can point in different directions. What that separation has not had is arithmetic. The claim that competitive redesign can strip the socially useful part of an institution while leaving its material dependencies standing has been available as a possibility for some time. This paper computes when it is the generic outcome rather than one possibility among several.

The mechanism has a name already, borrowed from a literature that has nothing to do with restaurants. Appropriability is the share of the value something creates that its originator can capture, and the observation that returns follow appropriability rather than value created is the organising insight of the economics of innovation (Teece 1986). Applied to the functions of a site rather than to an invention, it does the work the argument needs. The transaction is almost perfectly appropriable: the operator charges for it directly. Somewhere to sit after paying is barely appropriable at all, because most of what it is worth accrues to the people sitting and to the people they meet, and almost none of it reaches the till.

A word of caution about the word. Organizational slack in the behavioural theory of the firm means resources held inside a firm in excess of what production requires, treated as a buffer against shocks or as evidence of agency problems (Cyert and March 1963; Bourgeois 1981). What is at issue here sits outside the firm and buffers nothing for it, accruing instead to users. The word is the same and the referent differs, so the intuitions of the older literature do not transfer.

What follows is a model. Its ten functions, their footprints, their social values and their appropriabilities are stipulated and are stated in full; nothing is fitted to any business, no figure here estimates any firm's returns, and no company is named. Two grids are enumerated exhaustively and one robustness test uses a seeded ensemble; twenty-six invariants are enforced and a failed invariant fails the run. The historical section is documentary and was verified separately from the model, which is not calibrated to it.

The tradition this argues with

Six bodies of work supply what the model formalises, and it is worth being precise about which part each supplies, because the contribution is arithmetic rather than diagnosis.

The operational account is Ritzer's. Rationalization in fast food, and its intensification once ordering moves onto a screen and the customer absorbs work the operator used to do, is a described phenomenon with a literature (Ritzer 1983; Ritzer and Miles 2018). Nothing in the diagnosis is new here. What the model adds is a price: it says which functions rationalization reaches first and why, and the answer turns out not to be the ones that cost the most to run.

The normative question is Horkheimer's. A procedure can be perfected without its purpose being examined, and speed of service is a purpose that has never had to argue for itself (Horkheimer 1947). The model leaves that argument open. What it shows is narrower: the measure being perfected and the measure being lost are different measures, which is the condition under which the question bites.

The spatial claim is Lefebvre's: space is produced rather than given, and a parcel described by area, circulation and yield is not the same object as a place described by familiarity and time (Lefebvre [1974] 1991). The two orderings computed above are that distinction written as arithmetic. One order is the parcel's, the other the place's. They rank the same ten things. They do not agree.

The rent mechanism is Marx's and Neil Smith's. Building-site rent, and the gap between what a site yields under its current use and what it would yield under another, is the pressure the model applies (Marx 1894; Smith 1979), within a broader account of capital's spatial organization (Harvey 1982). Smith developed the rent gap for gentrification, and carrying it to a roadside business is an extension rather than a licence. The discipline that keeps this honest is Aalbers's: financialization means identifiable financial actors, instruments and valuation practices (Aalbers 2016). A rise in what land is worth does not by itself qualify. The mechanism here is rent pressure. The paper uses that name.

The reason the ecological result holds is Urry's and Gorz's. Automobility is a system of mutually reinforcing arrangements rather than a preference attached to an otherwise unchanged landscape (Sheller and Urry 2000; Urry 2004; Gorz 1973). A site can be redesigned. The journeys that reach it belong to something larger, and the operator has no purchase on them. That is why the burden calculation comes out as it does, and the model earns the result rather than assuming it.

What the unpriced value is for is Fraser's question. Accumulation depends on capacities sustained outside the wage relation, which its own organization can erode (Fraser 2016). The application here stays modest: an afternoon at a table is not care work, and a restaurant is not a welfare institution. The useful part is the structure, that a site may support relationships its customers' individual purchases do not pay for, which is what low appropriability means in this setting.

Two further sources give the functions their content. Informal public sociability has requirements that can be stated, among them accessibility, the absence of a spending obligation, and somewhere to sit, and a literature that states them (Oldenburg 1989). Observation of how people actually use small urban spaces supplies the rest, including the finding that what they do there is mostly unremarkable and mostly requires only somewhere to be (Whyte 1980). The model's ten functions are an attempt to itemise that, and the itemisation is the paper's own.

Benjamin supplies the method rather than a premise: read an ordinary commercial fragment closely enough and the order that produced it becomes legible (Benjamin 1999). A later section reads one that way. It is a document about barbecue and interstate commerce, and it contains a complete statement of the distinction this paper is about.

Marx's separation of what a thing does for people from the exchange through which access is bought (Marx 1867) is the oldest version of that distinction. Appropriability is a narrow, measurable descendant.

The order in which a site sheds what it does

Give each of a site's functions three numbers: the footprint it occupies in space and time, the social value it creates, and its appropriability. Private return is appropriability times social value, so appropriability is the only substantive stipulation; the rest is arithmetic. An operator facing a ground rent keeps a function while its private return covers the rent on its footprint, which sorts the cuts by private return per unit footprint. A public evaluation weighing the same site would sort them by social value per unit footprint.

Under the stipulated numbers the operator's order is: meeting others without buying, staying after the purchase is finished, tables and chairs, restrooms open to customers, shelter from weather, parking long enough to be served, a wider menu than the minimum, collecting an order without parking, preparing the food, ordering and payment. The five ways of staying are the first five, and everything transactional survives all of them.

The order a public evaluation would use is different, and the difference is not a reversal. Their rank correlation is 0.556, which is positive, and the paper does not claim that private and social value are opposed. The claim is narrower and worse. Socially, the first thing that should go is the parking that the transaction requires, a large footprint carrying a modest value. The operator keeps it until sixth, three places after tables and chairs. The seed's compressed slogan for the whole phenomenon was that they kept the car and lost the place. In this model that is not a slogan but a consequence of where appropriability is high and where it is low.

Set every appropriability to the same number and the two orders become identical, with a rank correlation of exactly 1.000. Nothing in the result comes from the footprints, the social values, or the shape of the arithmetic. It comes from the fact that some of what a site does can be charged for and some cannot.

The cost is readable directly. Each function has a ratio of social value to private return, which is the reciprocal of its appropriability, and it is what society loses per unit of private return the operator was failing to earn from it. For the first function cut that ratio is 25.0; for the last it is 1.053. The site sheds its functions in almost exactly the order of how badly the shedding goes for everyone else.

The place empties long before it shuts

Because the ways of staying are cut early and the transaction is cut last, the two events are separated, and the separation is what the canary metaphor asserts without quantifying.

In the stipulated model the last way of staying disappears at a ground rent of 13.2. The business closes, in the sense that what it earns no longer covers the rent on what it still occupies plus the cost of being open at all, at a ground rent of 81.9. The ratio is 6.20. Measured from the first loss rather than the last, the interval is a factor of 61.4. The site remains open across 0.839 of the rent range over which it has nowhere for anyone to stay.

The condition of the site at the moment the last seat goes is the part worth dwelling on. It is still earning 0.588 of its peak profit. It has lost 0.423 of the social value it used to provide. Nothing in its accounts signals trouble. By the only measure anyone records, it is a going concern with a healthy margin. Closure, when it eventually arrives, will be reported as the event. It is the lagging indicator. The leading indicator was the removal of the chairs, and no one collects it.

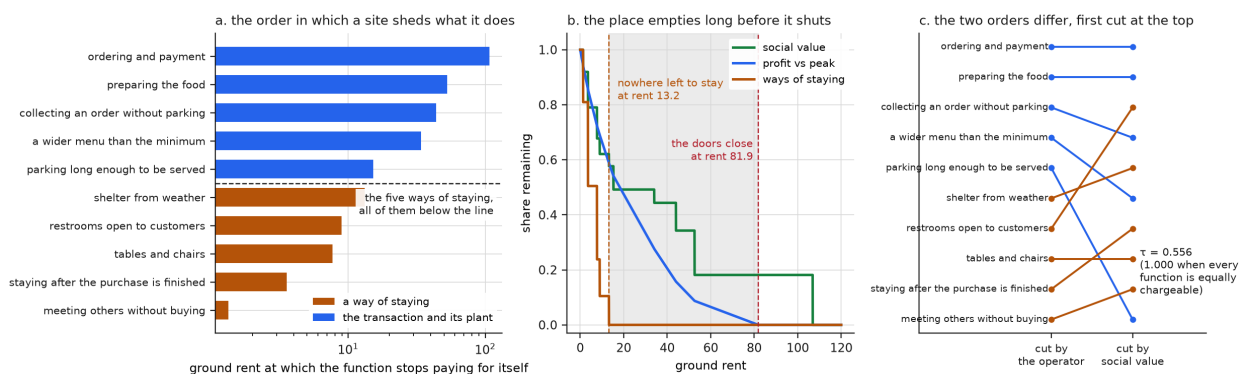


Figure 1: The order of the cut and the interval it opens. (a) The ground rent at which each function stops covering its own footprint, on a logarithmic scale; the five ways of staying fall below the line. (b) Social value provided, ways of staying provided, and profit against its own peak, as ground rent rises; the shaded band is the range over which the site is open with nowhere to stay. (c) The operator's cutting order against the order social value would imply, with the rank correlation between them.

Removing the place removes almost none of the burden

The second half of the seed's hypothesis is that eliminating the capacity to remain need not eliminate any ecological waste. In the model this is not a coincidence to be explained but a consequence of who pays for what.

Take a meal occasion at a site reached by car and give it three burdens: the journey, the food, and the site itself. The operator pays for the site, charges for the food, and neither pays for nor controls the journey. Under the stipulated values the journey is 2.28 and the food 2.50 of a total of 5.00, and the site is 0.22, which is 0.044 of the whole. Redesign moves only part of that fraction. Removing every function that lets a person stay, all five of them, reduces the total burden of a meal occasion by 0.0212.

Because that conclusion should not rest on one choice of emission factor, the calculation was swept across 1482 combinations of round trip length from 2 to 30 kilometres and emissions from 0.05 to 0.30 kilograms per kilometre. The reduction never exceeds 0.0377 anywhere on that grid and never falls below 0.00906. For the site's own footprint to account for half the burden of a meal occasion, it would have to be 21.8 times heavier than stipulated.

This is why the divergence the seed identified is generic rather than special. An operator optimising over the part of the burden they pay for will remove the capacity to remain, because that is where private yield is lowest, and will leave the journey untouched, because the journey is not theirs to remove. The result is a site that is worse to be at and no lighter on the world. Nothing prevents the opposite outcome: a site replaced by housing, a square and services within walking distance would reduce journeys and expand shared life at once, and the model permits that outcome as readily as this one. What the model shows is that the profit-maximising path does not lead there, because the thing that would have to change is not a thing the operator owns.

A duty that attaches to staying is cheap to escape

The final mechanism is the least comfortable, and unlike the rest it was documented before it was modelled.

Suppose an obligation attaches to a site because it provides somewhere to remain: a duty of non-discrimination, of accessibility, of licensing, of rates. If the duty scales with the capacity provided, it simply lowers the rent at which that capacity is cut, by exactly its own rate; to remove every way of staying at zero rent pressure would require a duty rate of 13.2, which is large. If instead the duty is triggered by a threshold, so that a site owes nothing once the capacity it provides falls below some share, it creates a notch, and the arithmetic changes completely.

At a threshold of a tenth of the site, an operator can drop below it by removing three functions: meeting others without buying, staying after the purchase is finished, and tables and chairs. The private return sacrificed is 0.0704 of the site's total. Any duty costing more than that is escaped by removing them, at any ground rent whatsoever, including none at all. The social value destroyed in the process is 0.3226 of the site's total. The ratio of what everyone else loses to what the operator

gives up is 4.580. Where the notch is placed so that a single function does the job, the ratio equals that function's own social-to-private ratio: a duty worth 0.00555 of private return removes the ability to meet others without buying, destroying 0.0806 of social value, a ratio of 25.0.

This is not a speculative mechanism. In 1966 a federal district court held that five drive-in restaurants in South Carolina fell outside Title II of the Civil Rights Act of 1964. The relevant statutory category was a facility "principally engaged in selling food for consumption on the premises," and the court found that these establishments had "no tables and chairs, or counters, bars or stools... sufficient to accommodate any appreciable number of patrons," that "the service is geared to service in the customers' cars," that "customers are encouraged to consume the food off the premises by its service in disposable containers," and that half of what they sold was eaten elsewhere. The one establishment in the group with tables and chairs, a downtown sandwich shop, was held to be covered; the five without were not (*Newman v. Piggie Park Enterprises, Inc.* 1966).

The findings also record what the exemption was an exemption from. Discrimination at all six establishments was, in the court's words, uncontested and completely established by the evidence, and "the limited Negro customers who are served must place and pick up their orders at the kitchen windows and are not permitted to consume their purchases on the premises" (*Newman v. Piggie Park Enterprises, Inc.* 1966). The right to buy did not entail the right to stay. The distinction this paper draws between transactional access and presence was the operative distinction on the ground, and the one the statute turned on.

The reasoning did not survive. The Court of Appeals reversed the refusal to enjoin discrimination at the drive-ins (*Newman v. Piggie Park Enterprises, Inc.* 1967), and the Supreme Court, reaching the case on the separate question of attorney's fees, stated that the district court had "erroneously concluded that Title II does not cover drive-in restaurants of the sort involved in this case" (*Newman v. Piggie Park Enterprises, Inc.* 1968). The holding was repudiated within two years. The incentive it exposes was not repealed by being repudiated: wherever an obligation is keyed to a threshold of on-premises capacity, the model says the cheapest response is to fall below the threshold, and the historical record says that response was tried and argued in open court.

Whether the ordering survives other numbers

A model with three stipulated numbers per function and ten functions could be arranged to produce almost any ordering, so the ordering was tested against an ensemble. Every footprint and every appropriability was perturbed by an independent uniform factor between 0.6 and 1.4 and the analysis rerun, 800 times.

The first function cut is a way of staying in 1.000 of those draws, all 800 of them. All five ways of staying fall within the first six cut in 0.971 of them. In the single worst draw of the 800 the five still average rank 3.6 out of ten. The exact result reported above, that they are precisely the first five, holds in 0.538, which is the honest figure and the weakest of the four: the tight version of the claim is sensitive to the numbers, and the substance of it is not. The rank correlation between

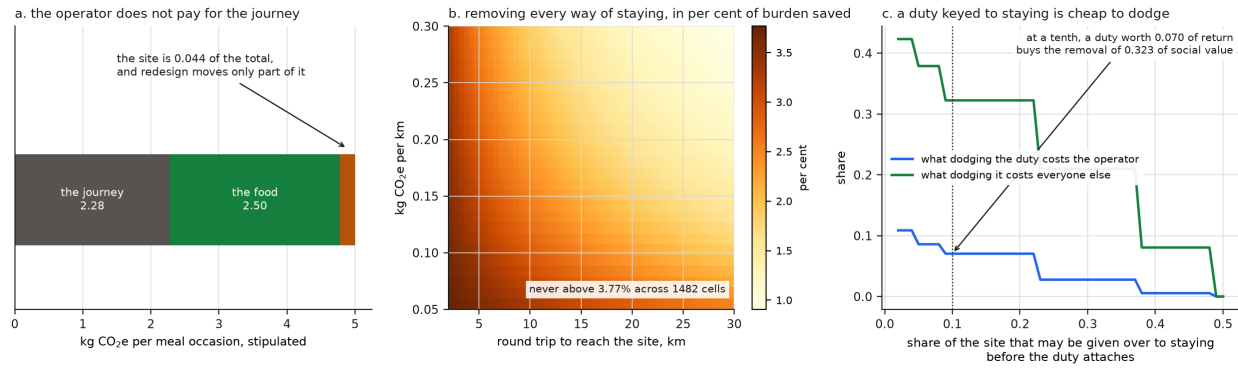


Figure 2: What a redesign can and cannot move. (a) The burden of one meal occasion, in stipulated units: the journey, the food, and the site the operator actually controls. (b) The reduction in total burden from removing every way of staying, across trip lengths and emission factors. (c) What escaping a duty costs the operator against what it costs everyone else, as the threshold at which the duty attaches varies.

the private and social orders has a median of 0.467 across the ensemble and a maximum of 0.822, never reaching the 1.000 that uniform appropriability would produce.

Against reading this as nostalgia

An argument of this shape invites a suspicion it should meet directly: that it locates a better world immediately before the present arrangement, which is where such worlds are usually found. Williams showed how reliably that happens, and how the good place recedes one generation at a time whenever anyone goes looking for it (Williams 1973). The suspicion is fair, and the model is partly a response to it. A computed ordering can be checked, and it makes no reference to any period. Nothing here says that 1958 was better. It says that where a function's value lands on people other than the operator, rent removes it early, which was as true then as now.

Whether affection for a lost social form obscures history or confronts it is itself contested, and the paper takes no side. Jameson read the nostalgic form as a surface standing in for the past rather than engaging it (Jameson 1984); Dika, working over some of the same films, argued that such works can confront the conditions they depict (Dika 2003). That disagreement is more useful unresolved. Treating memory as evidence would be careless, and treating it as false consciousness would discard the only testimony there is about what these places were for.

There is a stronger reason for caution, which the case in a later section supplies. The remembered drive-in was, at six establishments in South Carolina, a place where some customers could buy but not stay. Any account that mourns a lost commons owes an answer to the question of whose commons it was. The model cannot answer it, and the paper does not pretend the question is secondary.

The sectoral history also refuses to cooperate with a simple story. Roadside restaurants have their own trajectory, shaped by highway building, franchising and labour supply, and they were being

rationalized well before the period usually blamed for it (Jakle and Sculle 1999). Drive-in cinemas are a separate case with separate economics, and their decline should not be transplanted onto restaurants merely because both involved cars and both contracted (Fox and Black 2011). This paper is about restaurants, and it reports no count of either.

Bataille is worth invoking once, as a provocation rather than a foundation. His challenge to a world in which every activity must justify itself by what it produces (Bataille [1949] 1988) names the thing the model prices: an hour that yields nothing is not thereby worthless. The provocation does not license the asphalt. An abundance of unhurried life and a throughput of scarce materials are different quantities, and the burden calculation exists to separate them.

What is not being claimed

The ten functions and their three numbers are stipulated. Appropriability is the stipulation everything rests on, and no empirical estimate of it exists for any of these functions; the ensemble varies it rather than defending it, and the direction of the result follows from the argument that some of a site's value is chargeable and some is not, while every magnitude follows from numbers nobody has measured. The ensemble perturbs the constants and not the functional forms, and that is a real limit.

The model prices functions and is silent about the people who provide them. Service work has a history and an organizational record of its own (Cobble 1992), and a fond memory of being served is not a labour history. Removing a service role is not automatically either a liberation or a loss, and nothing here decides which it is.

The model also has no distributional content. It treats the capacity to remain as a single quantity, when access to it has never been distributed evenly, and the case in the previous section is the proof: the ability to buy and the permission to stay were separated by race at every one of those six establishments. Whose presence is being defended is a question the model cannot ask and the paper should not pretend to have answered. The car itself carries the same double character, having been a source of real autonomy and protection for Black travellers under segregation while the establishments it delivered them to turned them away (Sorin 2020).

Nor is this a case for preservation. The mechanism does not distinguish a site worth keeping from one worth replacing, and a former drive-in that becomes housing, a square and useful services within walking distance would reduce journeys and expand shared life at once, which the model permits and profit-maximisation does not select. The object worth defending is a capacity. A building, an asphalt apron and a propulsion system are the things that happened to carry it.

Finally, the paper does not claim that capitalism cannot tolerate what it cannot monetise. That formulation is false and the model shows why: raise the appropriability of a function far enough and it survives any rent the business itself survives, so a firm that finds sociability profitable will supply it, and some do. The claim is narrower and survives being narrowed. Where the value a function creates lands mostly on people other than the operator, it is cut first; it is cut long before anything the operator would recognise as trouble; cutting it lightens nothing; and any duty that

keys on it makes cutting it more attractive still. The canary was never outside the mine. It was part of the mine, which is why what happens to it is worth reading.

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